



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

December 23, 2014

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Osmond Rogers**
Tax Registry No. 933282
70 Precinct
Disciplinary Case No. 2012-7398

The above named member of the service appeared before Assistant Deputy Commissioner Claudia Daniels-DePeyster on July 1, 2014 and was charged with the following:

DISCIPLINARY CASE NO. 2012-7398

1. Said Police Officer Osmond Rogers, while assigned to the 70th Precinct, on or about November 15, 2011, in Kings County, did engage in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that after reporting potential misconduct to the Internal Affairs Bureau, he did disclose to the subject of the investigation that he made the notification. (*As amended*)

P.G. 203-10, Pages 1, Paragraph 5

**GENERAL REGULATIONS, PUBLIC
CONTACT - PROHIBITED CONDUCT**

2. Said Police Officer Osmond Rogers, while assigned to the 70th Precinct, on or about November 15, 2011 and April 2, 2012, in Kings County, did wrongfully engage in conduct prejudicial to the good order, efficiency, and discipline of the Department in that he gave inconsistent statements during his Patrol Guide 206-13 hearing on each occasion. (*As amended*)

P.G. 203-10, Pages 1, Paragraph 5

**GENERAL REGULATIONS, PUBLIC
CONTACT - PROHIBITED CONDUCT**

In a Memorandum dated October 7, 2014, Assistant Deputy Commissioner Claudia Daniels-DePeyster found Police Officer Rogers Guilty of Specification Nos. 1 and 2, in Disciplinary Case No. 2012-7398. Having read the Memorandum and analyzed the facts of this matter, I approve the findings, but disapprove the penalty.

POLICE OFFICER OSMOND ROGERS

DISCIPLINARY CASE NO. 2012-7398

After considering all of the evidence presented and Respondent Rogers' otherwise good service record with the Department, the disciplinary penalty shall be reduced to the forfeiture of ten (10) vacation days.

A handwritten signature in black ink, appearing to read "William J. Bratton", written in a cursive style.

William J. Bratton
Police Commissioner



POLICE DEPARTMENT

October 7, 2014

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Osmond Rogers
Tax Registry No. 933282
70 Precinct
Disciplinary Case No. 2012-7398

The above-named member of the Department appeared before me on July 1, 2014, charged with the following:

1. Said Police Officer Osmond Rogers, while assigned to the 70th Precinct, on or about November 15, 2011, in Kings County, did engage in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that after reporting potential misconduct to the Internal Affairs Bureau, he did disclose to the subject of the investigation that he made the notification. (*As amended*)

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS, PUBLIC
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2. Said Police Officer Osmond Rogers, while assigned to the 70th Precinct, on or about November 15, 2011 and April 2, 2012, in Kings County, did wrongfully engage in conduct prejudicial to the good order, efficiency, and discipline of the Department in that he gave inconsistent statements during his Patrol Guide 206-13 hearing on each occasion. (*As amended*)

P.G. 203-10, Page 1, Paragraph 5 GENERAL REGULATIONS, PUBLIC
CONTACT - PROHIBITED CONDUCT

The Department was represented by Jennifer Kim, Esq. and Beth Douglas, Esq., Department Advocate's Office, and Respondent was represented by John Tynan, Esq., Worth, Longworth & London, LLP. Respondent, through his counsel, entered a plea of

Guilty to the subject charges. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent, having pleaded Guilty, is found Guilty as charged.

SUMMARY OF EVIDENCE IN MITIGATION

Respondent, an 11-year member of the Department, has been assigned to the 70 Precinct since graduating from the Police Academy. Because he suffers from Crohn's disease, he was assigned to roll call in 2010. He worked in roll call for four years. Between November 2010 and November 2011, he underwent numerous surgeries and was taking a lot of medication.

On October 26, 2011, while at work in the middle of the day, a [REDACTED] [REDACTED] showed Respondent a YouTube video showing [REDACTED] in a situation he was not supposed to be in. Specifically, the video showed a group of black males hanging out on a street corner, one of the males had a gun and was about to fight with somebody, and [REDACTED] broke up the fight. Respondent and [REDACTED] were coworkers but did not socialize together outside of work hours. Respondent and [REDACTED] decided that they should bring the video to [REDACTED] attention. [REDACTED] told Respondent and [REDACTED] that he already knew about the video and that it was nothing to worry about.

The next time Respondent spoke about the YouTube video was on the telephone that evening. Respondent called Detective [REDACTED]. Respondent and [REDACTED] had

worked in Impact together and were close friends. At the time of the call, [REDACTED] was assigned to the Internal Affairs Bureau (IAB). [REDACTED] asked Respondent to send him a copy of the video. Respondent did not have access to the video at the time and told [REDACTED] that he would send the video the next day. Respondent did not recall [REDACTED] telling him during their first conversation to make a notification to IAB. In an April 2, 2012 IAB interview, however, Respondent stated that [REDACTED] gave him that advice.

The next day, Respondent informed [REDACTED] that [REDACTED] wanted to see the video. Over [REDACTED] objection, Respondent forwarded the video link to [REDACTED]. After watching the video, [REDACTED] informed Respondent that he contacted his supervisor at IAB, and he believed that Respondent should make an IAB notification for the purpose of protecting himself. [REDACTED] gave Respondent the telephone number for his lieutenant. Respondent called the lieutenant and gave him information about the video.

After speaking with the IAB lieutenant, Respondent spoke with [REDACTED]. Respondent told [REDACTED] about making the notification to IAB. When asked why he told [REDACTED] about the notification, Respondent replied, "As I told the lieutenant, I felt like I just stabbed somebody in the back and I felt bad about it."

In his first official Department interview, which took place on November 15, 2011, Respondent stated that he made an IAB notification about the video and subsequently notified [REDACTED]. In the April 2012 interview, he stated that he spoke to [REDACTED] before notifying IAB. Respondent explained this inconsistency: "I was going through a lot of medical problems. So one interview . . . I didn't recall the date or time when I tell [REDACTED], if I ever tell [REDACTED] that statement. . . . I messed up." He continued, "My statement was inconsistent. From the first [interview] to the second

[interview] is with date gaps in it, and when you are asking somebody to really recall something that happened a couple of months back, we do mess up with our statement, and that's what happened." Respondent's medical condition flares up with stress.

Respondent is still on medication but is back on patrol.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y. 2d 222 (1974).

Respondent was appointed to the Department on July 1, 2003. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

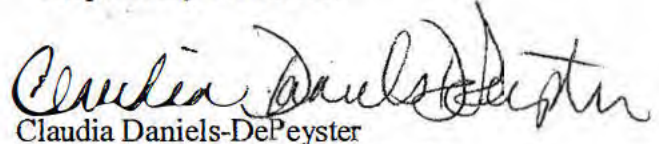
Respondent has pled Guilty to, after reporting potential misconduct to IAB, disclosing to the subject that he made the notification. He also pled Guilty to giving inconsistent statements at two official Department interviews, one in November 2011 and the other the following April. The Assistant Department Advocate made a penalty recommendation of 20 vacation days citing *Case No 80292/04* (June 13, 2005), in which a 20-year detective with no prior disciplinary record forfeited 20 vacation days for, while assigned to IAB, disclosing information pertaining to an investigation to a member assigned to another command. In addition, he accessed corruption case logs for unofficial purposes.

While the Court finds Respondent's medical condition to be no excuse for his tipping [REDACTED] off to the fact that he was the subject of an investigation, it is understandable how Respondent might have confused who he spoke with first, [REDACTED] or

IAB. Within a couple of days, he had multiple conversations about the video – two with [REDACTED], two with [REDACTED], and one with the lieutenant. Even a healthy person might forget the exact order of these conversations after several months had passed. No evidence was presented showing that Respondent intentionally changed his version of the incident as part of an attempted cover-up. Nor was there evidence of Respondent's conduct compromising the investigation in any way.

Based on the foregoing, it is recommended that Respondent forfeit a penalty of 15 vacation days.

Respectfully submitted,



Claudia Daniels-DePeyster

Assistant Deputy Commissioner - Trials



POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER OSMOND ROGERS
TAX REGISTRY NO. 933282
DISCIPLINARY CASE NO. 2012-7398

Respondent received an overall rating of 3.0 "Competent" on his last three annual performance evaluations. In his 11 years of service, [REDACTED]
[REDACTED]
[REDACTED]

Respondent has no prior formal disciplinary record.

For your consideration.


Claudia Daniels-DePeyster
Assistant Deputy Commissioner – Trials